

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

**Interconnection of Large Loads to the
Interstate Transmission System**

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Docket No. RM26-4-000

**COMMENTS OF THE UNDERSIGNED ATTORNEYS GENERAL
AND STATE CONSUMER ADVOCATES**

On October 23, 2025, pursuant to section 403 of the Department of Energy Organization Act,¹ the Secretary of Energy (“Secretary”) issued a proposed Advance Notice of Proposed Rulemaking (“ANOPR”) for consideration by the Federal Energy Regulatory Commission (“FERC” or “Commission”) regarding interconnection of large loads to the transmission system. Pursuant to the Commission’s Notice Inviting Comments issued October 27, 2025, and the Commission’s November 7, 2025, Notice Granting Extension of Time, the Massachusetts Attorney General’s Office (“Massachusetts AGO”),² the Arizona Attorney General’s Office (“Arizona AGO”),³ the Colorado Attorney General’s Office (“Colorado AGO”),⁴ the Connecticut Office of

¹ 42 U.S.C. § 7173.

² The Massachusetts Attorney General is the chief legal officer of the Commonwealth of Massachusetts as well as the ratepayer advocate. She is authorized expressly by statute to intervene on behalf of public utility ratepayers in proceedings before the Federal Energy Regulatory Commission. *See* Mass. Gen. Laws ch. 12, § 11E. The Massachusetts AGO intervened in this docket on November 4, 2025.

³ The Arizona AGO represents and defends the legal interests of the people of the State of Arizona.

⁴ The Colorado AGO represents and defends the legal interests of the people of the State of Colorado.

Consumer Counsel (“CT OCC”),⁵ the Maryland Office of People’s Counsel (“MPC”),⁶ the Minnesota Attorney General’s Office (“Minnesota AGO”),⁷ the Office of the Nevada Attorney General, Bureau of Consumer Protection (“Nevada BCP”),⁸ the New Hampshire Office of the Consumer Advocate (“NH OCA”),⁹ the Oregon Attorney General (“Oregon AG”),¹⁰ and the Rhode Island Division of Public Utilities and Carriers (“Rhode Island DPUC”)¹¹ (collectively, the “State Entities”) submit the following comments.

The State Entities recognize the circumstances underlying the Secretary’s request that FERC develop rules and processes to facilitate “timely and orderly interconnections of large loads

⁵ The Connecticut OCC is an independent state agency of the State of Connecticut that serves as the designated advocate for all ratepayers and consumers of electric, natural gas, water, and telecommunications utility services. *See* Conn. Gen. Stat. 16-2a(a). The CT OCC intervened in this docket on November 20, 2025.

⁶ MPC is charged by Maryland statute with protecting the interests of Maryland’s residential consumers of electricity before state and federal agencies. Maryland Public Utilities Article, §2-205(b). MPC intervened in this docket on November 11, 2025.

⁷ The Minnesota AGO is the chief legal officer of the State of Minnesota as well as a ratepayer advocate. He is explicitly authorized by statute to intervene to further the interests of residential and small business ratepayers at the Federal Energy Regulatory Commission. Minn. Stat. § 8.33, subd. 6. The Minnesota AGO moved to intervene in this docket on November 20, 2025.

⁸ The Nevada BCP is a statutorily created division within the Office of the Nevada Attorney General, pursuant to NEV. REV.STAT. § 228.310 and represents the interests of Nevada utility consumers before FERC and at the state level pursuant to NEV. REV. STAT. § 228.360.

⁹ The NH OCA is designated as the official representative of New Hampshire’s residential utility customers and is authorized by New Hampshire law, N.H. R.S.A. 363:28, to appear in any proceeding concerning utility rates, charges, tariffs, and consumer services before any commission, agency, or regulatory body in which the interests of New Hampshire’s residential utility consumers are involved. The NH OCA intervened in this docket on November 7, 2025.

¹⁰ The Oregon AG is the chief legal officer of the State of Oregon. He is authorized to represent the state in any matter in which the state is interested. Or. Rev. Stat. § 180.060.

¹¹ The Rhode Island DPUC is the agency statutorily charged with representing ratepayers before federal agencies, *see* RI. Gen. Laws § 39-1-29, as well as advocating on behalf of consumers before the Public Utilities Commission. *See* R.I. Gen. Laws § 39-1-1(c).

to the transmission system.”¹² In the context of current and anticipated substantial demand growth in the near future, the State Entities appreciate the Commission’s attention to addressing these particular types of large loads proactively and in a manner that mitigates and avoids unnecessary system disruption and potential ratepayer harm. Indeed, the State Entities agree that standardizing large load interconnection rules may allow for more predictable and efficient interconnection, which would benefit both ratepayers and the transmission system as a whole.

While recognizing that these large load interconnections warrant the Commission’s prompt attention, the State Entities are wary of the Secretary’s requested April 30, 2026, deadline for final Commission action.¹³ Depending in part on the ultimate scope of the Commission’s rulemaking, establishing unprecedented federal jurisdiction and new large load interconnection rules is likely to have sweeping impacts on the nation’s ratepayers and electric grids. Rushing this rulemaking process could substantially curtail meaningful public participation opportunities¹⁴ and detract from the legal durability of any final rules established as a result of this rulemaking process. With respect to process, the State Entities encourage the Commission to provide reasonable time periods for stakeholders to provide comment and otherwise participate in this proceeding.¹⁵

¹² ANOPR, at P 1.

¹³ The Secretary does not articulate or attribute any significance to this particular date in his letter request or proposed ANOPR.

¹⁴ Section 403 itself—pursuant to which the Secretary issued this proposed ANOPR—requires “full consideration of the issues and an opportunity for interested persons to present their views.” 42 U.S.C. § 7173(c).

¹⁵ 5 U.S.C. § 553(c); see *Consumer Energy Council of Am. v. FERC*, 673 F.2d 425, 445–46 (D.C. Cir. 1982) (FERC must provide meaningful opportunity to comment on rulemaking proposals); *Mobil Expl. & Producing N. Am., Inc. v. FERC*, 881 F.2d 193, 199 (5th Cir. 1989) (due process requires comment opportunity when FERC exercises its statutory rulemaking authority); see also *NRG Power Mktg., LLC v. FERC*, 862 F.3d 108, 116 (D.C. Cir. 2017) (when FERC significantly modifies a utility’s section 205 filing, FERC must provide an opportunity for meaningful comment on such modifications).

On substance, the State Entities provide the following comments on two topics relevant to the Commission’s large load interconnection rulemaking: (1) jurisdiction, and (2) ratepayer protections. First, in developing proposed rules, the Commission must establish clear jurisdictional boundaries that appropriately respect state jurisdictional authority over the distribution system and retail ratemaking. Any infringement on this authority could threaten state regulatory commissions’ ability to use their expertise and authority to protect the reliability and affordability of retail electric service in their respective territories. The Commission must also prioritize ratepayer protections in this rulemaking. In particular, the State Entities support efforts by the Commission to incentivize curtailability, load flexibility, and other demand response mechanisms to encourage large load customers to avoid substantial and costly impacts to regional peak loads. Ratepayers across the country are suffering from ever-increasing energy cost burdens, and the Commission must ensure that this rulemaking serves to lessen those burdens, not exacerbate them.

I. JURISDICTION

The Secretary has stated an intention to “avoid *even arguably* affecting the States’ jurisdiction” over the distribution system by limiting this rulemaking to “interconnections directly to transmission facilities.”¹⁶ Nonetheless, as the Secretary acknowledges, “[h]istorically, the Commission has not exerted jurisdiction over load interconnections.”¹⁷ While the Secretary has proposed a basis for asserting jurisdiction here, including by citation to the Federal Power Act,¹⁸ there does not appear to be legal precedent directly granting this jurisdiction, even when limited

¹⁶ *Id.* at P 18 (emphasis in original).

¹⁷ FERC Docket No. RM26-4-000, Secretary’s Letter to FERC (Nov. 3, 2025).

¹⁸ ANOPR, at P 2 (citing 16 U.S.C. § 824(b) (“The Commission shall have jurisdiction over all facilities for such transmission or sale of electric energy.”)).

to transmission interconnections.¹⁹

To resolve this jurisdictional question, the Commission must address two interrelated issues: (1) whether and how the Commission has jurisdiction over these “interconnections directly to transmission facilities” and, if so, (2) how to define “transmission facilities” to avoid infringing on state authority over the distribution system.

On the first issue, the State Entities urge the Commission to use this rulemaking to provide clarity regarding the basis upon which it asserts authority over such interconnections, should it determine to do so.

Assuming the Commission can in fact exercise jurisdiction over these interconnections, the State Entities emphasize that the Commission’s rulemaking must be carefully designed and narrowly tailored to avoid an expansion of this jurisdiction over end-use customer loads interconnecting to the local electric distribution system. As the ANOPR recognizes, such interconnections fall squarely within the exclusive jurisdiction of state retail energy regulatory authorities under the Federal Power Act.²⁰ These state commissions have the authority, experience, and regional expertise to regulate large load interconnections to their respective distribution systems to ensure the interconnections do not compromise the reliability and affordability of retail electric service. The Commission must avoid even inadvertently infringing on this foundational, well-established authority.

At a minimum, to prevent any such potential infringement on state jurisdictional authority over end-use retail energy, the Commission should clearly define the scope of this rulemaking.

¹⁹ See, e.g., *Tri-State Generation and Transmission Association, Inc.*, 193 FERC ¶ 61,070, at P 50 (2025).

²⁰ 16 U.S.C. § 824(b); see *New York v. FERC*, 535 U.S. 1, 22–23 (2002); see also *Tri-State Generation*, 193 FERC ¶ 61,070.

The ANOPR attempts to establish this jurisdictional boundary by limiting the rulemaking to “interconnections directly to transmission facilities.”²¹ The ANOPR, however, does not specify how “transmission facilities” will be defined, beyond stating that the definition will “be consistent with the Commission’s seven-factor test” from Order No. 888.²² While citation to the seven-factor test is an appropriate starting point, the State Entities encourage the Commission to use this rulemaking to prescribe clear, defined jurisdictional limits based on this test and the Federal Power Act. The Commission should also clarify in a proposed rulemaking how, and by whom, these jurisdictional determinations will be made. Beyond protecting state jurisdiction and maintaining regulatory certainty, establishing a clear jurisdictional standard and process will be critical in allowing for more predictable and efficient interconnection to the transmission system.

In developing the scope of its rulemaking, the Commission should also ensure that any final rule does not preclude states and regional transmission organizations (“RTO”) from instituting their own specific, tailored rules regarding large load interconnections within their territories. While the State Entities support the development of baseline federal standards grounded in statutory authority, different regions across the country should be allowed to build upon federal standards to create rules that address unique regional challenges and opportunities.

²¹ ANOPR, at P 18.

²² *Id.* (citing *Cal. Pac. Elec. Co.*, 133 FERC ¶ 61,018, at P 45 (2010)); see also *Promoting Wholesale Competition Through Open Access Non-Discriminatory Transmission Services by Public Utilities; Recovery of Stranded Costs by Public Utilities and Transmitting Utilities*, Order No. 888, 61 Fed. Reg. 21,590 (1996). The seven factors are: (1) local distribution facilities are normally in close proximity to retail customers; (2) local distribution facilities are primarily radial in character; (3) power flows into local distribution systems; it rarely, if ever, flows out; (4) when power enters a local distribution system, it is not reconsigned or transported on to some other market; (5) power entering a local distribution system is consumed in a comparatively restricted geographical area; (6) meters are based at the transmission/local distribution interface to measure flows into the local distribution system; and (7) local distribution systems will be of reduced voltage. Order No. 888, 61 Fed. Reg., at 21,620.

Indeed, many state jurisdictions and certain RTOs have already started creating such large load interconnection rules and tariffs;²³ any Commission rulemaking here should not impede that progress or prevent other regions from making similar progress.

II. RATEPAYER PROTECTIONS

In addition to establishing clear jurisdictional standards that respect state authority, the State Entities urge the Commission to meaningfully prioritize ratepayer protections during this rulemaking process. To that end, the State Entities are encouraged by the ANOPR's inclusion of ratepayer protection principles, including that "[l]oad and hybrid facilities should be responsible for 100% of the network upgrades they are assigned,"²⁴ and a directive that study processes should "allow for efficient siting of loads and generating facilities and thereby minimize the need for costly network upgrades."²⁵ If adopted and prioritized, adherence to these principles could mitigate the possibility that large load interconnection costs will be passed onto ratepayers.

The State Entities stress that this rulemaking must include provisions that mitigate the risk of ratepayer subsidization of large load interconnection, including by ensuring that the above cost assignment principle includes a robust assessment that assigns all costs caused by large loads (both direct and indirect) to those same large load customers. The Commission's rulemaking should also include protections that shield ratepayers from cost risk associated with large load customers that

²³ See, e.g., FERC Docket No. ER26-247(Southwest Power Pool High Impact Large Load proposal); NARUC, *Resolution Urging the Federal Energy Regulatory Commission to Preserve and Affirm State Retail Regulatory Jurisdiction in its Large Load Interconnection Proceeding*, at 2 (noting that "at least 20 states have approved or have pending large load tariffs or similar measures, which may include financial commitments, curtailment protocols, and minimum contract terms to allow for the rapid interconnection of large loads without compromising grid reliability or unduly burdening existing retail customers") (Nov. 11, 2025).

²⁴ ANOPR, at P 25.

²⁵ *Id.* at P 20.

fail to materialize, abandon interconnecting projects, or prematurely exit the transmission system. Without strong protections in place, large load interconnections have the potential to claim existing capacity already paid for by ratepayers and further burden ratepayers with the costs of new and/or unnecessary transmission infrastructure upgrades. The Commission should use this rulemaking as an opportunity to protect ratepayers from new cost burdens at a time when ratepayers can least afford it.

In particular, the State Entities support efforts by the Commission to protect ratepayers by allowing and/or incentivizing large load customers to participate in curtailment, load flexibility, and other demand response mechanisms.²⁶ These mechanisms allow large interconnecting loads to shift their withdrawals away from peak demand hours that cause the most strain on the grid.²⁷ By taking advantage of load flexibility, large load customers can minimize the need for costly transmission infrastructure upgrades (which are sized to serve peak demand)²⁸ and reduce their impact on energy supply constraints during peak demand hours. These provisions would reduce the cost and reliability impact of large loads connecting directly to the transmission system, and can serve as key protections for ratepayers in the wake of current and anticipated future load

²⁶ *Id.* at P 24.

²⁷ See, e.g., Walsh, S., M. Farmer, A. Zevin, K. Smaczniak, G. Daly, N. Lobel, A. Clements, Y. Guo, and T. Profeta, *How DOE's Proposed Large Load Interconnection Process Could Unlock the Benefits of Load Flexibility*. NI PB 25-03. Durham, NC: Nicholas Institute for Energy, Environment & Sustainability, Duke University (2025), available at <https://nicholasinstitute.duke.edu/publications/how-doesproposed-large-load-interconnection-process-could-unlock-benefits>.

²⁸ ISO-NE, *2050 Transmission Study*, at 16 (Feb. 12, 2024), available at https://www.iso-ne.com/static-assets/documents/100008/2024_02_14_pac_2050_transmission_study_final.pdf (“Increases in load become significantly more expensive (with regard to transmission costs) as peak load levels increase. This is especially true at levels above ~51 GW of load. Increases in load at peak load levels below 51 GW do increase costs (roughly \$0.75 billion per GW of load added from 28 GW to 51 GW), but these increases are small when compared to the increase in costs above 51 GW of load (roughly \$1.5 billion per GW of load added from 51 GW to 57 GW).”).

growth. The State Entities therefore encourage the Commission to pursue and prioritize the ANOPR principle that seeks to incentivize large loads “to be curtailable and dispatchable” by a “system operator.”²⁹ Indeed, the Commission should consider expanding the scope of this rulemaking to consider additional load flexibility mechanisms which can similarly alleviate the peak demand burden on ratepayers.

III. CONCLUSION

The State Entities appreciate the Commission’s attention to this matter and its solicitation of public input on the development of rules and processes to facilitate interconnections of large loads to the transmission system.

Respectfully Submitted,

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²⁹ ANOPR, at P 24.

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CERTIFICATE OF SERVICE

In accordance with 18 C.F.R. § 385.2010, I hereby certify that I have this day served the foregoing document upon each person designated on the official service list compiled by the Secretary in this proceeding.

Dated at Boston, Massachusetts this 21st day of November, 2025.

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